

STATE OF NEW YORK

9382--A

IN SENATE

March 6, 2026

Introduced by Sens. JACKSON, SALAZAR -- read twice and ordered printed, and when printed to be committed to the Committee on Labor -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to authorizing a claimant to receive a dependent allowance in addition to unemployment insurance benefits

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 590 of the labor law is amended by adding a new
2 subdivision 13 to read as follows:

3 13. Dependent allowance. (a) For the purposes of this subdivision, the
4 term "dependent" shall mean:

5 (i) children eighteen years old and younger, including foster chil-
6 dren, stepchildren, and children for whom the claimant has at least
7 fifty percent custody in a shared custody arrangement;

8 (ii) full-time students up to the age of twenty-six;

9 (iii) nonworking adults in the household ages sixty and older; and

10 (iv) adults with disabilities in the household.

11 (b) In addition to the benefits received pursuant to this section, a
12 claimant eligible for such benefits shall also be entitled to receive a
13 dependent allowance. Beginning on the effective date of this subdivi-
14 sion, such dependent allowance shall be equal to forty-five dollars per
15 dependent per week. The amount of such dependent allowance shall
16 increase annually according to the consumer price index on March first,
17 by an amount determined by the department to represent the percent
18 change in the price index published for December of the preceding year
19 over the price index published for December of the year prior to the
20 preceding year, adjusted to the nearest one tenth of one percent. The
21 department shall report the annual increase of such dependent allowance
22 to the legislature and shall publish the current dependent allowance
23 amount in a prominent location on the department's website.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (c) The amount of the dependent allowance a claimant receives pursuant
2 to this subdivision shall be considered part of such claimant's benefit
3 amount and shall be subject to the same due process and appeal rights.

4 (d) For the purpose of determining a claimant's eligibility to receive
5 a dependent allowance pursuant to this subdivision, the department shall
6 request information relating to whether a claimant has any dependents as
7 part of the initial application for benefits.

8 (e) The number of dependents established for a claimant at the begin-
9 ning of a benefit year shall remain in effect for the entirety of such
10 benefit year.

11 (f) An individual that is determined to be a dependent of a claimant
12 may not be considered a dependent of another claimant for purposes of a
13 dependent allowance with respect to the same weekly benefit.

14 (e) No later than the end of the month following each completed calen-
15 dar quarter, the department shall provide a written report to the legis-
16 lature on dependent allowances provided pursuant to this subdivision,
17 and shall make such report publicly available in a prominent location on
18 the department's website. Such report shall include the following infor-
19 mation from the immediately preceding calendar quarter, deidentified and
20 disaggregated by race, ethnicity, gender, location and poverty level:

21 (i) the total number of claimants claiming a dependent allowance;

22 (ii) the average weekly dependent allowance amount;

23 (iii) the average number of dependents claimed by a claimant, broken
24 down by the type of dependent; and

25 (iv) information on the number of dependent allowance appeals filed
26 and the outcomes of such appeals.

27 (f) (i) An employer shall not be charged for a dependent allowance
28 received by a claimant pursuant to this subdivision.

29 (ii) An employer shall not be considered an interested party with
30 respect to a dependent allowance received by a claimant and shall not
31 have any right to contest such dependent allowance.

32 (g) The department shall provide notice to a claimant of the weekly
33 dependent allowance amount, the dependent or dependents established for
34 such claimant and the calculation used to determine the amount of the
35 dependent allowance in such claimant's monetary determination.

36 § 2. Paragraph (a) of subdivision 5 of section 590 of the labor law,
37 as amended by section 3 of part KK of chapter 56 of the laws of 2025, is
38 amended to read as follows:

39 (a) A claimant's weekly benefit amount shall be one twenty-sixth of
40 the remuneration paid during the highest calendar quarter of the base
41 period by employers, liable for contributions or payments in lieu of
42 contributions under this article, provided the claimant has remuneration
43 paid in all four calendar quarters during such claimant's base period or
44 alternate base period. However, for any claimant who has remuneration
45 paid in all four calendar quarters during such claimant's base period or
46 alternate base period and whose high calendar quarter remuneration
47 during the base period is three thousand five hundred seventy-five
48 dollars or less, the benefit amount shall be one twenty-fifth of the
49 remuneration paid during the highest calendar quarter of the base period
50 by employers liable for contributions or payments in lieu of contribu-
51 tions under this article. A claimant's weekly benefit shall be one
52 twenty-sixth of the average remuneration paid in the two highest quar-
53 ters paid during the base period or alternate base period by employers
54 liable for contributions or payments in lieu of contributions under this
55 article when the claimant has remuneration paid in two or three calendar
56 quarters provided however, that a claimant whose high calendar quarter

1 is four thousand dollars or less but greater than three thousand five
2 hundred seventy-five dollars shall have a weekly benefit amount of one
3 twenty-sixth of such high calendar quarter. However, for any claimant
4 who has remuneration paid in two or three calendar quarters during such
5 claimant's base period or alternate base period and whose high calendar
6 quarter remuneration during the base period is three thousand five
7 hundred seventy-five dollars or less, the benefit amount shall be one
8 twenty-fifth of the remuneration paid during the highest calendar quar-
9 ter of the base period by employers liable for contributions or payments
10 in lieu of contributions under this article. Any claimant whose high
11 calendar quarter remuneration during the base period is more than three
12 thousand five hundred seventy-five dollars shall not have a weekly bene-
13 fit amount less than one hundred forty-three dollars. The weekly benefit
14 amount, so computed, that is not a multiple of one dollar shall be
15 lowered to the next multiple of one dollar. On the first Monday of
16 September, nineteen hundred ninety-eight the weekly benefit amount shall
17 not exceed three hundred sixty-five dollars nor be less than forty
18 dollars, until the first Monday of September, two thousand, at which
19 time the maximum benefit payable pursuant to this subdivision shall
20 equal one-half of the state average weekly wage for covered employment
21 as calculated by the department no sooner than July first, two thousand
22 and no later than August first, two thousand, rounded down to the lowest
23 dollar. On and after the first Monday of October, two thousand fourteen,
24 the weekly benefit shall not be less than one hundred dollars, nor shall
25 it exceed four hundred twenty dollars until the first Monday of October,
26 two thousand fifteen when the maximum benefit amount shall be four
27 hundred twenty-five dollars, until the first Monday of October, two
28 thousand sixteen when the maximum benefit amount shall be four hundred
29 thirty dollars, until the first Monday of October, two thousand seven-
30 teen when the maximum benefit amount shall be four hundred thirty-five
31 dollars, until the first Monday of October, two thousand eighteen when
32 the maximum benefit amount shall be four hundred fifty dollars, until
33 the first Monday of October, two thousand nineteen when the maximum
34 benefit amount shall be thirty-six percent of the average weekly wage
35 until the first Monday of October, two thousand twenty-five when the
36 maximum benefit amount shall be eight hundred sixty-nine dollars, until
37 the first Monday of October, two thousand twenty-six and each year ther-
38 eafter on the first Monday of October when the maximum benefit amount
39 shall be fifty percent of the average weekly wage provided, however,
40 that in no event shall the maximum benefit amount be reduced from the
41 previous year, and provided, however, that in no event shall the maximum
42 benefit amount, including the amount of a dependent allowance a claimant
43 receives pursuant to subdivision thirteen of this section, exceed one
44 hundred percent of such claimant's average weekly wage from such claim-
45 ant's highest-earning calendar quarter.

46 § 3. This act shall take effect immediately.